COMMISSION DECISION

CELEX id	32013D0423
Document type	Decision
Policy domain	Business and competition
Year	2013
Legal actor type	Public agency
Applicable role	Importer/exporter
Language	en

COMMISSION DECISION

of 2 August 2013

accepting an undertaking offered in connection with the anti-dumping proceeding concerning imports of crystalline silicon photovoltaic modules and key components (i.e. cells and wafers) originating in or consigned from the People's Republic of China

(2013/423/EU)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Council Regulation (EC) No 1225/2009 of 30 November 2009 on protection against dumped imports from countries not members of the European Community (1) ('the basic Regulation'), and in particular Articles 7, 8 and 9 thereof,

After consulting the Advisory Committee,

Whereas:

A. PROCEDURE

(1)

By Regulation (EU) No 513/2013 (2), the Commission imposed a provisional anti-dumping duty on imports into the Union of crystalline silicon photovoltaic modules and key components (i.e. cells and wafers) originating in or consigned from the People's Republic of China (PRC).

B. UNDERTAKING

1. Undertaking offer

(2)

Subsequent to the adoption of the provisional anti-dumping measures, a group of cooperating exporting producers, including their related companies in the PRC and in the European Union, and together with the China Chamber of Commerce for Import and Export of Machinery and Electronic Products (hereinafter: 'CCCME') offered a joint price undertaking in accordance with Article 8(1) of the basic Regulation. The undertaking offer was also supported by the Chinese authorities.

2. Evaluation of undertaking offer

(3)

The undertaking offer has been examined against the background of changed market circumstances between the moment of the submission of the undertaking offer and the investigation period in the investigation that led to the imposition of provisional measures. Observed changes relate to a drop of both price levels and consumption on the Union market and are linked to several factors established and analysed in the investigation that led to the imposition of provisional measures.

(4)

Changes in price levels can sometimes be addressed in an undertaking by an indexation method which links minimum import prices to prices of raw materials as quoted in recognized and publicly available sources. However, no correlation between prices of raw materials and those of final products that would allow for a reliable indexation method could be established in the present case. In order to address an established change in price levels, an alternative method had to be established and price reports by representative and publicly available databases (Bloomberg (3) and pvXchange (4)) specialised in the sector concerned have been used as a reference.

(5)

In order to ensure that the undertaking is practicable, the Chinese exporters presented a joint undertaking offer with one minimum import price for photovoltaic modules and one for each of their key components (i.e. cells and wafers).

(6)

Further, in order to reduce the risk of company channelling, and make it feasible and practical to monitor the number of participating exporters, the Chinese exporters offered to ensure that the volume of imports made under the undertaking would be at annual levels corresponding roughly to their current market performance.

(7)

The exporters have offered a price undertaking. In order to assess whether that price undertaking removes the injurious effect of dumping, the Commission has analysed, inter alia, the current export prices and the level of provisional duty. On that basis, it was concluded that the price undertaking removes the injurious effect of dumping.

(8)

The elimination of the injurious effect of dumping is therefore achieved by a price undertaking covering imports within an associated annual level and in addition an ad valorem provisional duty levied on imports above the annual level as referred to in recital 6 above.

(9)

The CCCME will also provide the Commission with regular and detailed information concerning the sales to the Union of the companies presenting the joint undertaking offer, allowing for the undertaking to be monitored effectively by the Commission. With a view to CCCME’s active role, the support given by the Chinese authorities and the safety net in the form of annual level referred to in recital 6, the Commission considers the risk of circumvention limited and outweighed by considerations linked to the need to ensure security of supplies on the Union market.

C. COMMENT OF PARTIES AND ACCEPTANCE OF THE UNDERTAKING

1. Comments of parties

(10)

The undertaking offer has been made available to interested parties. No comments against its acceptance have been received so far.

(11)

In the view of the above, the undertaking offered by the exporting producers is acceptable. The companies concerned and the CCCME have been informed of the essential facts, considerations and obligations upon which the acceptance is based.

(12)

Further, to enable the Commission to monitor effectively compliance with the undertaking, when the request for release for free circulation is presented to the relevant customs authority, exemption from the anti-dumping duty will be conditional on:

(a)

the presentation of a commercial invoice by the company listed in the Annex to this Decision and a certificate issued by the CCCME containing at least the elements listed in Annex II and Annex III of Regulation (EU) No 513/2013 respectively;

(b)

the fact that the imported goods are manufactured, shipped and invoiced directly by the companies listed in the Annex to this Decision either to their related companies in the Union acting as an importer and clearing the goods for free circulation in the Union as mentioned in the Annex to this Decision or to the first independent customer acting as an importer and clearing the goods for free circulation in the Union;

(c)

the fact that the goods declared and presented to customs correspond precisely to the description of the commercial invoice.

(13)

Where no such invoice and certificate are presented or when they do not correspond to the product presented to customs or a commercial invoice containing at least the elements of Annex IV of Regulation (EU) No 513/2013 is presented, the appropriate rate of anti-dumping duty shall instead be payable.

(14)

Whenever, pursuant to Article 8(9) of the basic Regulation, the Commission withdraws its acceptance of an undertaking following a breach by referring to particular transactions and declares the relevant undertaking invoices to be invalid, a customs debt shall be incurred at the time of acceptance of the declaration for release into free circulation.

(15)

Importers should be aware that a customs debt may be incurred, as a normal trade risk, at the time of acceptance of the declaration for release into free circulation as described in recitals 11 and 12 even if an undertaking offered by the manufacturer from whom they were buying, directly or indirectly, had been accepted by the Commission.

(16)

Pursuant to Article 14(7) of the basic Regulation, customs authorities should inform the Commission immediately whenever indications of a violation of the undertaking are found.

(17)

In the event of a breach or withdrawal of the undertaking or in case of withdrawal of acceptance of the undertaking by the Commission, the provisional anti-dumping duty imposed in accordance with Article 7 of the basic Regulation shall automatically apply by means of Article 8(9) of the basic Regulation.

HAS ADOPTED THIS DECISION:

Article 1

The undertaking offered by the exporting producers listed in the Annex of this Decision together with the China Chamber of Commerce for Import and Export of Machinery and Electronic Products (CCCME), in connection with the anti-dumping proceeding concerning imports of crystalline silicon photovoltaic modules and key components (i.e. cells and wafers) originating in or consigned from the People’s Republic of China, is hereby accepted.

Article 2

This Decision shall enter into force on 6 August 2013.

Done at Brussels, 2 August 2013.